ENERGY REGULATORY COMMISSION
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Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 15, Series of 2024

A RESOLUTION DELEGATING THE AUTHORITY FOR THE APPROVAL AND AWARD OF CONTRACTS FOR THE PROCUREMENT OF GOODS AND SERVICES, AND RENEWAL THEREOF, INCLUDING LEASE OF VENUE

WHEREAS, pursuant to Republic Act No. 9184 (RA 9184), otherwise known as the *"Government Procurement Reform Act"*, and its Implementing Rules and Regulations, the Commission *en banc*, as Head of Procuring Entity (HoPE), has the authority to approve or award contracts in relation to procurement matters;

WHEREAS, in accordance with Office Order No. MCD-24, series of 2024 or the Manual of Approving and Signing Authorities, the Commission *en banc* delegated to the Chairperson and CEO and two (2) Commissioners, acting collectively, the authority to approve and award contracts for the procurement of goods and services, and renewal thereof, including lease of venue, with an amount of more than One Million Pesos (PhP1,000,000.00) but not exceeding Ten Million Pesos (PhP10,000,000.00);

WHEREAS, the Commission *en banc* resolved that the resolution of cases presented before the three (3) members of the Commission, acting collectively, upon whom the authority is delegated, should result to a unanimous decision for the Decision to be binding to the Commission; otherwise, the matter shall be elevated to the Commission *en banc*;

WHEREAS, the subject designation of three (3) members of the Commission, acting collectively, to undertake the above tasks is deemed necessary to rationalize the task allocation among the members of the Commission and to promote efficiency given the extensive work load and plans it needs to complete;

NOW, THEREFORE, BE IT RESOLVED, as it is hereby **RESOLVED**, that the Commission *en banc* is designating the Chairperson and CEO Monalisa C. Dimalanta, and Commissioners Floresinda G. Baldo-Digal and Marko Romeo L. Fuentes, acting collectively, as the authorized authority that will review, consider, and act on, including undertake the approval and award of contracts for the procurement of goods and services, and renewal thereof, including lease of venue, with an amount of more than One Million Pesos (PhP1,000,000.00) but not exceeding Ten Million Pesos (PhP10,000,000.00).

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR) and all industry stakeholders, as well as published in the ERC Website and such other online platform available to the Commission.

Pasig City, 21 August 2024.

ERC
Office of the Chairperson and CEO
MCD2024-021170

MONALISA C. DIMALANTA
Chairperson and CEO

ALEXIS M. LUMBATAN
Commissioner

CATHERINE P. MACEDA
Commissioner

FLORESINDA G. BALDO-DIGAL
Commissioner

MARKO ROMEO L. FUENTES
Commissioner